

Consent Request Frequently Asked Questions (FAQ's)

Isle of Man
Financial Intelligence Unit
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Consent Request Frequently Asked Questions

Introduction

The Isle of Man Financial Intelligence Unit (**FIU**) is issuing a frequently asked questions ("**FAQs**") guidance document concerning consent requests instigated by a request received from the Isle of Man Financial Crime Partnership ("**IOMFCP**"), and input from its members.

The responses detailed in this document apply to all regulated sectors in the Island. This document is intended as a general guide and must be read in conjunction with relevant legislation.

This document is a living document and will be periodically updated to address any further FAQs relating to requests for consent.

Frequently Asked Questions

Question	Response
What information needs to be included in a consent request?	This information is detailed within the FIU's SAR guidance document updated in June 2024: FIU SAR Guidance Please ensure you upload all invoices and relevant supporting documents to the consent request.
What is the difference between a protected and authorised disclosure?	A **Protected Disclosure** as per Section 153 of the Proceeds of Crime Act 2008 can be made by anyone who, in the course of their trade, profession, business or employment knows or suspect that another person is engaged in money laundering. An **Authorised Disclosure** as per Section 154 of the Proceeds of Crime Act 2008 can be made by a person who has engaged, is engaging, or is about to engage in an act that may constitute money laundering. If they wish to rely on the statutory defence, consent must be sought from the FIU before carrying out the act.
Can I make an appropriate request for consent under Section 24 of the FIU Act 2016?	No, a request for consent can only be considered if there is a clear suspicion of money laundering or terrorist financing.
What process does the FIU undertake when considering a request for consent?	The FIU conducts analysis of the consent request and supporting documents and consults with domestic and international law enforcement agencies. The seven working day period is required for the FIU to make an informed decision regarding the request received.

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Do I need to detail my suspicion within a consent request?	Yes, the requestor is required to clearly detail and explain their basis for suspicion within every POCA 2008 SAR submitted, and in every associated consent request made. The requestor will need to state why the funds they are receiving/holding /transferring/converting are suspected to be the proceeds of crime. **Example** You hold a bank account for a customer and notice they are receiving many third-party payments. The credits have been received for over a year, but the volume and value of the credits have only recently increased. The customer receives a regular salary. You contact the customer to clarify the reason for the credits. The customer states they run a crafts business in addition to being employed full time. Upon requesting the customers most recent tax return you become aware the income is not being declared and suspect the customer is evading tax. The customer requests to close their account following the further questions asked, and requests to transfer the funds to another banking institution. The consent regime could be used in this instance as it would involve the transfer of suspected criminal property being paid away to another bank account. The FIU Suspicion Guidance can be consulted for more information on suspicion: FIU Suspicion Guidance
What do I do if I have submitted an incorrect value in my request for consent?	Contact the FIU as soon as possible, as the value in the request can be amended by FIU staff. The new value should be submitted as additional information in the disclosure following a conversation with the FIU. The FIU cannot amend a request once a response has been submitted through Themis. In this instance you would need to submit a new request to seek appropriate consent, where applicable.

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Can you include multiple requests in the same consent request?	In most cases the answer is no. Requests for consent need to be considered individually and detailing multiple transactions on the same request can make this difficult. As per the Proceeds of Crime (Prescribed Disclosures) Order 2015, each transaction should be submitted as a separate request for consent containing the reason for your suspicion, the amount and currency, remitter and recipient bank accounts and any relevant documentation such as invoices or loan agreements. When multiple transaction requests are made on the same request, and one element falls outside the consent regime, this leads to the whole request being returned as 'consent not applicable'. One exception is where a personal relationship has several accounts, and the whole relationship is being closed, with the full balance remitted to a single beneficiary account. This would be treated as one transaction providing the funds in all accounts are suspected to be the proceeds of crime. If only one account is suspected to hold the proceeds of crime, then the consent request should detail that account only.
Can I make a request for a number of, or a category of, transactions (series of transactions)?	Yes, the FIU will consider a SAR with a request for appropriate consent for a number of, or a category of, transactions. A request of this nature must be sufficiently detailed with regard to matters such as the nature, number, regularity, value and duration of the transaction(s). It may assist to create a table or matrix or the transactions for which appropriate consent is requested. Where appropriate the request must include full remitter and beneficiary account details. It may also assist to consider the Proceeds of Crime (Prescribed Disclosures) Order 2015 when drafting a SAR that contains a request for appropriate consent, and in particular, Section 5 of the Schedule.
Does the FIU ever make the decision to neither grant nor refuse a request for consent?	In most cases the FIU will provide a response to all requests for consent within the seven working day timeframe. However, there are occasions when the FIU makes the decision to neither grant nor refuse consent, and a letter is provided via Themis to this effect. Following the 7 working day period the requestor has implied consent to undertake the transaction and the statutory defence applies.

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Will the FIU grant retrospective consent?	No, there is no facility within the Proceeds of Crime Act 2008 for the FIU to grant retrospective consent in any circumstances.
In what circumstances would the FIU issue a consent not applicable letter?	A consent not applicable letter would be issued through Themis when the request falls outside the scope of the consent regime. Examples of this are requests for: • Retrospective consent. • Matters deemed to be business decision. • Requests submitted in error. • Requests where no suspicion of criminal property has been detailed. The FIU has had instances where consent requests were received to receive funds that are not suspected to be the proceeds of crime. Whilst the account holder may be linked to criminality that does not automatically mean all funds are the proceeds of crime. An example of this would be a request to receive legitimate salary payments.
How and when can Section 156 of POCA 2008 be used by deposit taking bodies to vary the prescribed threshold amount?	All requests to increase the prescribed threshold amount are considered on a case-by-case basis. Only deposit taking bodies are permitted to request an increase in the threshold amount. The consent request submitted regarding the uplift should contain the rationale for why the uplift is required and an expected payment schedule, and/or detailed overview of the expected bank account activity to include the remitting and beneficiary details.
Can accrued interest and investment returns be included within a request for consent if the exact value is not known at the time of the request and will likely change day to day?	A financial institution can include within a consent request a request to pay away associated accrued interest and investment returns. It is understood this value will likely fluctuate daily. The financial institution must provide an estimate of the final value within the request for consent.

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Can I be granted consent in relation to assets subject to financial sanctions?	No. A licence is required from the Isle of Man Customs and Immigration Division ("**IOM C&I**"). IOM C&I Sanctions Licences The consent regime can only be used to request consent when the requestor in in possession of a relevant licence issued by Isle of Man Customs & Immigration, and there is also a suspicion of money laundering or terrorist financing.
What type of consent requests would fall under arrangements within Section 140 of POCA 2008?	Section 140 of the Proceeds of Crime Act 2008 relates to arrangements with another person. This involves entering an arrangement involving property that may be criminal proceeds, when the person knows, or suspects that the arrangement could facilitate money laundering. "Arrangements" can become complex when considering the offence and statutory defences and if doubt exists it is recommended that independent legal advice is sought. There are many different arrangements including but not limited to: • Being a signatory on a bank account for a client suspected to be involved in criminal activity; • Providing legal, financial, or administrative services that involve handling suspected criminal property; and • Acting as an intermediary in a deal or investment involving potentially illicit funds. **Example** Your existing client is entering into a new loan agreement to receive funds from an overseas company. The ultimate beneficial owner of this company is identified to be a PEP affiliated with bribery and corruption concerns. Open-source information indicates that the proceeds from embezzlement may have flowed into the company that your client is receiving the loan from. Before the loan agreement is executed and the funds accepted you make a disclosure to the FIU with a consent request to receive what you suspect may be criminal property.
If my request for consent is refused, what happens next?	Should the FIU refuse a request for consent the moratorium period of 31 calendar days commences. The requestor therefore does not have a defence against a money laundering offence until implied consent is provided after the 31-day period, or the FIU issues consent at any time during the 31-day period.

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Where funds have been subject to a restraint order, and this is subsequently discharged, or varied, can consent be requested to pay away the funds?	Should the requestor still be suspicious the funds they hold are the proceeds of crime after a Restraint Order is discharged, or varied, then yes, the consent regime can still be used to seek consent from the FIU to pay away the funds. A copy of the discharge or varied restraint order should be uploaded to the relevant Themis record.
Can consent requests made to the FIU or consent responses received from the FIU be shared with other organisations?	Consent requests and responses cannot be shared with other individuals/organisations unless there is a clear legal basis to do so, a regulatory requirement, or Sections 147/148 of the Proceeds of Crime Act 2008 apply. Sharing a consent request/response without a clear legal basis could amount to a tipping off offence as detailed in Section 145 of the Proceeds of Crime Act 2008.

Disclaimer

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